

Tentative Rulings for August 4, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVCO2601545	HODGES VS THOMAS	MOTION FOR ATTORNEYS FEES BY HENRY HODGES, HELEN HODGES, HYTOSHA HODGES-MCDANIELS

Tentative Ruling:

GRANT

On 4/29/2026, this court granted Petitioners' Henry Hodges, Helen Hodges and Hytosha Hodges-McDaniels Motion to Expunge Mechanics' Lien. Petitioners now bring this motion for attorneys' fees (\$6,587.50) and costs (\$884.50) as the prevailing parties on the motion to expunge under Civ. Code § 8488. Petitioners requested fees and costs are reasonable and were necessary to obtain the expungement. The hourly rates and time spent in the preparation and hearing on the motion were reasonable. In addition, Petitioners' counsel is seeking reduced fees for the work performed.

Petitioners are awarded attorneys' fees of \$6,587.50 and costs of \$884.50, for a total of \$7,472.00, payable to Petitioners' counsel within 30 days.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN VS BMW NORTH AMERICA	MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S EMPLOYEE, LUIS HOLGUIN

Tentative Ruling:

Off Calendar

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504126	CARONNA VS CALIFORNIA BAPTIST UNIVERSITY	MOTION TO DEEM FACTS ADMITTED ON PLAINTIFF DOROTHY CARONNA, AND FOR SANCTIONS IN THE AMOUNT OF \$3,660

Tentative Ruling:

GRANT the motion to have facts deemed admitted.

On January 15, 2026, Defendant propounded Requests for Admissions ("RFAs") on Plaintiff via electronic service. Plaintiff's responses were due by February 18, 2026. Plaintiff failed to provide timely responses or objections. In opposition to this motion, now Plaintiff states that she did eventually file an objection and told Defendant she would not respond to discovery until the demurrer was heard. The hearing on the demurrer was on 6/24/2026.

In her Separate Statement in opposition to this motion, filed on 4/14/2026, Plaintiff submitted her proposed responses to the 42 RFAs propounded by Defendant.

The court finds that none of Plaintiff's proposed responses to the 42 RFAs comply with the requirements of CCP § 2033.220. Answers to RFAs must be complete and straightforward. Each answer shall (1) admit, (2) deny, or (3) specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. (CCP § 2033.220(b)) Plaintiff's responses are not in substantial compliance. (CCP § 2033.280(a)(1)) Any objection filed by Plaintiff was untimely.

The court finds that Plaintiff has waived all objections. The motion is granted. Defendant is awarded sanctions against Plaintiff in the reduced amount of \$1,050 (3 hours of attorney time at \$350 per hour), payable to defense counsel within 30 days.